

Andhra Pradesh Sports Authorities Act, 1988

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State of Andhra Pradesh - Act

Andhra Pradesh Sports Authorities Act, 1988

ANDHRA PRADESH

India

Andhra Pradesh Sports Authorities Act, 1988

Act 4 of 1988

Published on 11 January 1988

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Andhra Pradesh Sports Authorities Act, 1988

(Act

No. 4 of 1988

)

Last Updated 19th August, 2019

[Dated 11.1.1988]

An Act to provide for the establishment of Sports Authorities for the promotion of game and sports in the state of Andhra pardesh and for matters connected there with or incidental thereto.

Be it enacted by the Legislative Assembly of the state of Andhra Pradesh in the Thirty-eight year of the Republic of India as follows: -

Chapter-I Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh Sports Authorities Act, 1988.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall be deemed to have come into force on the 1st day of November, 1987.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Chairman" means the Chairman of the Sports Authority;

(b)

"District Authority" means the District Sports Authority constituted under section 7;

(c)

"Government" means the State Government of Andhra Pradesh;

(d)

"Mandal Authority" means the Mandal Sports Authority constituted under section 10;

(e)

"member" means the member of the Sports Authority of Andhra Pradesh, or the District Sports Authority or as the case may be the Mandal Sports Authority and includes the Chairman of the concerned Authority;

(f)

"notification" means a notification published in the Andhra Pradesh Gazette and the word "notified" shall be construed accordingly;

(g)

"Prescribed" means prescribed by rules made by the Government under this Act;

(h)

"Sports Authority" means the Sports Authority of Andhra Pradesh constituted under section 3;

(i)

"Sports council" means the body known as the Andhra Pradesh Sports Council and includes such other bodies as may be notified;

(j)

"Vice-Chairman" means the Vice-Chairman and Managing Director of the Sports Authority;

(k)

Words and expressions, used but not defined in this Act shall have the meanings, if any, respectively assigned to them in the relevant Acts.

Chapter-II Establishment Of State Sports Authority

3.

Establishment and constitution of the Sports Authority.

(1)

There shall be established, by the Government by notification for the State of Andhra Pradesh an Authority by the name of "The Sports Authority of Andhra Pradesh";

(2)

The Sports Authority of Andhra Pradesh shall be a body corporate by the name aforesaid, having perpetual succession and common seal with power subject to the provisions of this Act, and the rules made thereunder to acquire, hold and dispose of property and shall by the said name sue and be sued.

(3)

The headquarters of the Sports Authority shall be at Hyderabad.

(4)

The Sports Authority shall consist of the following members, namely:-

(a)

a Chairman to be appointed by the Government;

(b)

the Commissioner of Sports and Youth services shall be the Vice-Chairman and Managing Director; ex-officio.

(c)

six members, out of whom two shall be women, to be appointed by the Government from among,-

(i)

the outstanding sportsman who participated in Olympics, Commonwealth Games, Asian Games, Test Cricket and the like;

(ii)

persons who have rendered valuable service for the promotion of sports and games in the State; or

(iii)

the reigning champions in different sports and games at the State, National or International level;

(d)

one member to be appointed by the Government from among the persons who distinguished themselves in the field of physical education;

(e)

[the Government may be notification, increase or decrease of Members both in Ex-officio as well as Members to be appointed by the Government, according to the need of the State Sports Authority.]

[Added by Act No. 5 of 2010, dated 8.4.2010.]

[***]

[Omitted 'Provided that no member of the Spons Authority other than an ex-officio member shall be an officer or empolyee of the states or any indusutrial undertaking owned or controlled by the state Government or Central Government or of any nationalised bank.' by Act No. 5 of 2010, dated 8.4.2010.]

4.

Powers and functions of the Sports Authority.

- The Sports Authority shall be the principal policy formulating body and shall have the following powers and functions, namely:-

(a)

to approve the Sports calender of the State;

(b)

to accord administrative and financial sanctions for construction of stadia, indoor stadia, swimming pools, play fields and the like in the State;

(c)

to approve the proposals received from the District Authority for construction of stadia, indoor stadia, swimming pools, play fields and the like in the State and forward the same to Government of India and the Sports Authority of India for sanction of grants from the Government of India and the Sports Authority of India under the relevant schemes;

(d)

to implement all the sports programmes of the Government of india, Sports Authority of India and the Netaji Subhash National Institute of Sports, Patiala through the District Authorities and the Mandal Authorities;

(e)

to accord administrative and financial sanction for the creation of posts in the Sports Authority, District Authority and Mandal Authority on the basis of the recommendations of the Vice-Chairman; Powers and functions of the Sports Authority.

(f)

to approve the budget estimates and revised budget estimates of the Sports Authority;

(g)

to raise loans from financial institutions and Banks on Government security;

(h)

to raise finances by leasing out the properties owned by or vested in it in the manner prescribed;

(i)

to augment the income of the Sports Authority by conducting tournaments, matches, test matches and other sports events and arranging sale of tickets in connection therewith;

(j)

to accept endowments, bequests, donations, trophies, grants and transfer of any movable and immovable properties made to the Sports Authority;

(k)

to approve and present audited statement of accounts and utilisation certificates of the Sports Authority to the Government;

(l)

to approve the audited statements of Accounts of all the District Authorities and submit the same to the Government together with the utilisation certificate;

(m)

to co-ordinate all games, sports and physical education activities in all educational institutions whether or not receiving grants from the Government and to supervise that the funds allotted to these institutions for the promotion of sports and games and physical education are properly utilised; and

(n)

to exercise such other powers and perform such other functions as may be conferred or enjoined upon it by or under this Act.

5.

Salaries and allowances and other conditions of service of Chairman and allowances of members.

(1)

The Chairman of the Sports Authority shall be entitled to such salary and allowances and shall be subject to such conditions of service as may from time to time, be prescribed.

(2)

The other members of the Sports Authority shall receive such allowances as may be prescribed.

6.

Powers and functions of Vice-Chairman and Managing Director.

- The Vice-Chairman and Managing Director shall be the Chief executive of the Sports Authority and he shall exercise the following powers and perform the following functions, namely:-

(1)

implement all the programmes of the Sports Authority;

(2)

exercise general supervision and control over the sports officers, office staff, field staff, coaches, wardens of sports hostels or any other employee of the State Authority, District Authorities and Mandal Authorities;

(3)

exercise administrative control over all the sports hostels in the State;

(4)

deal with all the administrative matters pertaining to appointments, postings, transfers, promotions and disciplinary actions of the staff of the Sports Authority, District Authorities and Mandal Authorities;

(5)

run the day-to-day administration of the Sports Authority and conduct all its financial and administrative transactions;

(6)

be the custodian of the finances of the Sports Authority; Salaries and allowances and other conditions of service of Chairman and allowances of members. Powers and functions of Vice- Chairman and Managing Director.

(7)

prepare and present the audited statement of accounts and utilization certificates to the Sports Authorities for its approval.

(8)

obtain audited statements of accounts of all the District Authorities and place them before the Sports Authority for its approval along with utilisation certificates;

(9)

to recommend administrative and financial sanction for the creation of the posts of officers and other employees for the performance of the functions of the Authorities under this Act.

Chapter-III District Sports Authority

7.

Establishment and constitution of District Sports Authority.

(1)

There shall be established by the Government by notification, an Authority for each District by the name of "The District Sports Authority",

(2)

The District Sports Authority shall consist of the following members, namely:-

(a)

the District Collector who shall be the Chairman; ex-officio;

(b)

the Superintendent of Police of the District who shall be the Vice-Chairman; ex-officio;

(c)

the District Educational Officer; ex-officio;

(d)

the Executive Engineer, Roads and Buildings or Panchayat Raj Department, to be nominated by the Chairman of the District Authority; ex-officio;

(e)

three members, out of whom one shall be a woman, to be appointed by the Government from among,- Establishment and constitution of District Sports Authority.

(i)

the outstanding sportsman who participated in Olympics, Commonwealth games, Asian games, Ranjitrophy and the like;

(ii)

persons who have rendered valuable service for the promotion of games and sports in the District; or

(iii)

reigning champions in different sports and games at the State level, National level and International level tournaments;

(f)

one member to be appointed from among the Directors of physical education of the University having jurisdiction over the district or any person who had distinguished himself in the field of physical education;

(g)

a paid secretary to be appointed by the Government who shall be the Member-Secretary;

(h)

[the Government may by notification, increase or decrease or Members both in Ex-officio as well as Members to be appointed by the Government, according to the need of District Sports Authority.]

[Added by Act No. 5 of 2010, dated 8.4.2010.]

[***]

[Omitted 'Provided that no member of the District Authority other than an ex-officio member shall be an officer or empolyee of the state Government or central Government or any Corporation or any indusustrial undertaking owned or controlled by the state Government or Central Government or of any Nationalised bank.' by Act No. 5 of 2010, dated 8.4.2010.]

(3)

The qualifications and other conditions of service and pay and allowances of the Member-Secretary shall be such as may be prescribed.

8.

Functions of the District Authority.

- The District Authority shall have the following functions, namely:-

(a)

to approve the sports calender of the District;

(b)

to approved the proposal for construction of stadia, indoor stadia, swimming pools, play fields and the like in the District and to obtain the administrative and financial sanctions from the Sports Authority;

(c)

to approve the proposals received from the Mandal Authority for construction of Stadia, indoor stadia, swimming pools, play fields and the like in the Mandal and forward the same to the Sports Authority for administrative and financial sanctions;

(d)

to approve the budget estimate and the revised estimates of the District Authority;

(e)

to raise finances by leasing out the properties owned by or vested in it in the manner prescribed;

(f)

to augment the income of the District Authority by conducting tournaments, matches and other sports events and arranging the sale of tickets in connection therewith;

(g)

to accept endowments, bequests, donations, trophies, grants and transfer of any movable and immovable properties made to the District Authority;

(h)

to promote and organise indigenious sports women sports, rural sports and tribal sports, children sports, and the like at the district level;

(i)

to promote and organise the major games and sports which have National and International importance at the District level and arrange to send the district teams for State level events to be conducted by the Sports Authority;

(j)

to implement the various sports programmes of the Sports Authority of India, Netaji Subash National Institute of Sports, Patiala and the like which are allotted to the district;

(k)

to approve and present the audited statements of accounts and utilisation certificates to the Sports Authority;

(l)

to approve the audited statements of accounts and utilisation certificates received from Mandal Authority and submit the same to the Sports Authority;

(m)

to coordinate all games, sports and physical education activities in all educational institutions whether or not receiving grants from the Government and to supervise that the funds allotted to these institutions for the promotion of games, sports and physical education are properly utilised;

(n)

to exercise such other powers and perform such other functions as may be conferred or enjoined upon it by or under this Act.

9.

Powers and functions of the Member-Secretary of District Authority.

- The Member-Secretary shall be the Chief Executive of the District Authority and he shall exercise the following powers and perform the following functions, namely:-

(1)

to implement all the programmes of the District Authority;

(2)

to exercise general supervision and administrative control over physical education teachers, coaches, field staff, office staff and other employees working under the administrative control of the District Authority and all the Members-Secretaries of the Mandal Authorities in the District, subject to the general supervision and control of the Vice-Chairman and Managing Director of the Sports Authority;

(3)

to run the day-to-day administration of the District Authority and conduct all its financial and administrative transactions;

(4)

to be the custodian of the finances of the District Authority;

(5)

to work under the general supervision and administrative control of the Vice-Chairman and Managing Director of the Sports Authority;

(6)

to prepare and present audited statements of accounts and utilisation certificates to the District Authority for its approval;

(7)

to obtain audited statements of accounts of all the Mandal Authorities in the District and place them before the District Authority for its approval along with the utilisation certificate.

Chapter-IV Mandal Sports Authority

10.

Establishment and constitution of Mandal Sports Authority.

(1)

With effect on from such date as may be notified, the Government may constitute for each Mandal, a Mandal Sports Authority.

(2)

The Mandal Sports Authority shall consist of the following members, namely:-

(a)

the President of the Mandal Praja Parishad who shall be the Chairman; ex-officio;

(b)

the Mandal Revenue Officer; ex-officio;

(c)

the Mandal Development Officer, ex-officio;

(d)

the Assistant Executive Engineer or as the case may be the Supervisor, Panchayat Raj Department; ex-officio;

(e)

three members, out of whom one shall be women to be appointed by the concerned District Collector from among the persons who have proficiency in games and sports;

(f)

the physical education instructor of the Degree or Junior College at the Mandal Headquarters who shall be the Member-Secretary; ex-officio;

(g)

[the Government may by notification, increase or decrease of Members both in Ex-officio as well as Members to be appointed by the Government, according to the need of Mandal Sports Authority.]

[Added by Act No. 5 of 2010, dated 8.4.2010.]

[***]

[Omitted 'Provided that no member of the Mandal Authority other than an ex-officio member shall be an officer or employee of the state Government or central Government or any Corporation or any industrial undertaking owned or controlled by the state Government or Central Government or of any Nationalised bank.' by Act No. 5 of 2010, dated 8.4.2010.]

11.

Functions of the Mandal Sports Authority.

- The Mandal Sports Authority shall have the following functions, namely:-

(a)

to promote and organise competitions in indigenous games;

(b)

to prepare and present proposals to the District Authority for construction of stadia, indoor stadia, swimming pool, play fields and the like in the Mandal;

(c)

to promote and organise women sports, children sports and tribal sports in the Mandal;

(d)

to promote martial arts if any in the Mandal;

(e)

to approve the budget estimates and the revised budget estimates of the Mandal Authority;

(f)

to raise finances by arranging leasing out the properties owned by or vested in it in the manner prescribed;

(g)

to augment income of the Mandal Authority by conducting tournaments, matches and other games and sports events and arranging the sale of tickets in connection therewith;

(h)

to accept endowments, bequests, donations, trophies, grants and transfer of any movable and immovable properties made to it;

(i)

to approve and present audited statements of accounts and utilisation certificates to the District Authority;

(j)

to co-ordinate all games, sports and physical education activities in all educational institutions whether or not receiving grants from the Government and to supervise that funds allotted to these institutions for the promotion of games, sports and physical education are properly utilised;

(k)

to exercise such other powers and perform such other functions as may be conferred or enjoined upon it by or under this Act.

12.

Member-Secretary to be the Chief Executive Authority .

- The Member-Secretary shall be the Chief Executive of the Mandal Authority and he shall exercise the following powers and perform the following functions, namely:-

(1)

implement all the programmes of the Mandal Authority;

(2)

exercise general supervision and administrative control over the office staff and field staff of the Mandal Authority and also the physical education teachers of all the Government Degree Colleges, Junior Colleges, High Schools in the Mandal subject to the general supervision and control of the Vice-Chairman and Managing Director of the Sport Authority;

(3)

run the day-to-day administration of the Mandal Authority and conduct all its financial and administrative transactions;

(4)

be the custodian of the finances of the Mandal Authority;

(5)

work under the general supervision and administrative control of the Member-Secretary of the District Authority;

(6)

shall prepare and present the audited statements of accounts and utilisation certificate to Mandal Authority and to arrange to send them to the District Authority for approval.

Chapter-V Miscellaneous.

13.

Term of office of the Chairman and other Members.

- The term of office of the member term of Mandal Sports Authority, the District Sports Authority members and vacancies and the procedure to be followed at the meeting of the said Authority shall be such as may be prescribed.

14.

Transfer of certain institutions.

- The Government may, at any time after the commencement of this Act, transfer to the Sports Authority or the District Authority or as the case may be the Mandal Authority the properties of the State Sports Councils and the District Sports Councils and the Mandal Sports Councils respectively along with its staff on such terms and conditions as it may deem proper.

15.

Authentication of orders etc.

- All the orders and decisions of the Sports Authority District and Mandal Authorities shall respectively be authenticated by the signature of the Vice-Chairman and Managing Director, and Member-Secretary.

16.

Sports Authority to function under the general supervision of the Government.

- The Sports Authority shall function under the general supervision of the Government and the Government shall have power to give such directions as it may deem fit from time to time, and shall also review the action of the Sports Authority.

17.

Funds of the Sports Authorities.

- The Sports Authority, District Authority, and the Mandal Authority shall have its own funds, consisting of -

(a)

the grants made by the State Government and the Central Government;

(b)

all money received by or on its behalf under the provisions of this Act or any other law for the time being in force, or under any other contract;

(c)

all proceeds of the disposals of the property by or on its behalf;

(d)

all rents accruing from any of its properties;

(e)

all monies received by or on its behalf from any local authority, public corporations, public companies, public and philanthropists or person by way of grants, endowments, trusts, gifts or deposits or in any form;

(f)

all interests and profit arising from any investment or of any form any transaction in connection with any money belong to it;

(g)

proceeds from tournaments conducted by the sports authorities and collection of fees for coaching in various sports activities.

18.

Power of Authorities to borrow.

- The Sports Authority, District Authority and the Mandal Authority may from time to time with the previous sanction of the Government and subject to the provisions of this Act and to such conditions as may be prescribed, borrow any sum required for the purpose of this Act.

19.

Guarantee of loans.

- The Government may guarantee in such manner as they think fit the payment of the principal and interest of any loan proposed to be raised by any authority.

20.

Accounts and Audits.

(1)

Every Authority under this Act shall cause proper accounts and other records in relation thereto to be kept including the proper system of internal check and prepare an annual statement of accounts, including the income and expenditure account and the balance sheet in such form as may be prescribed by regulations.

(2)

The accounts of every Authority shall be audited by such persons as may be appointed by the Government and any expenditure incurred in connection with such audit shall be payable by the concerned Authority to the Government.

21.

Inspections and control.

- The Government shall have the right to cause an inspection to be made by such person or persons as they may direct

to the affairs and properties of any Sports Authority, its buildings, stadia, indoor-stadia, swimming pools, plays the site and also to cause an enquiry to be made into the matter connected with the said Authorities. The Government shall in every cause give notice to the concerned Authority of their intention to cause such inspection or enquiry to be made and the concerned Authority shall be entitled to be represented thereat.

22.

Power to give directions.

- The Government may give such directions to any authority constituted under this Act, as it may consider necessary in the interest of sports and games or physical education.

23.

Power to make rules.

(1)

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act, shall immediately after it is made, be laid before the Legislature of the State if it is in session and if it is not in session in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified have effect only in such modified form or shall stand annulled as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

24.

Power to make regulations.

- The Sports Authority may with the previous approval of the Government, make regulations not inconsistent with the provisions of this Act, and the rules made thereunder to provide for all or any of the following matters, namely:-

(a)

the administration of the funds and other properties of the Authorities under this Act, and the maintenance of its accounts;

(b)

the duties of officers and employees of the Authorities;

(c)

the procedure to be followed by the Authorities in inviting, considering and accepting tenders; and

(d)

any other matter arising out of the functions of the Authorities under this Act, in which it is necessary or expedient to make regulations.

25.

Repeal of Ordinance 9 of 1987.

- The Andhra Pradesh Sports Authorities Ordinance, 1987 is hereby repealed.

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